



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9903 (EXTENSION)
ORIGINAL April 20, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9903 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1992. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

FEB 28 1990
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Sherwood, Division of Harsco
Lockport, NY

January 8, 1990

Expired - NO Renewal
NOT Active



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OCT 22 1991

DOT-E 9903
(FIRST REVISION)

1. Carten Controls Incorporated, Middlebury, Connecticut (Formerly, Sherwood, Division of HARSCO Corporation), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation in commerce of the hazardous materials described in paragraph 3 below subject to the limitations and special requirements specified herein. This exemption authorizes the use of a valve of a packless design with sealed bellows instead of non-perforated diaphragms, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Sherwood's application dated January 8, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and Carten Controls Incorporated's letter dated August 13, 1991.

3. HAZARDOUS MATERIALS (Descriptor and class). Poison A materials described in 49 CFR 173.326 and other hazardous materials specifically identified to and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description, as appropriate .

5. REGULATION AFFECTED. 49 CFR 173.327(a).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a cylinder approved for use in 49 CFR Part 173, Subpart H or under an exemption for Poison A materials. Maximum service pressure is 3,000 psig. Each cylinder charged with Poison A materials that are also corrosive must be equipped with valves that are of packless type design with stainless steel bellows rather than non-perforated diaphragm incorporating a manual locking device which is set in the closed position during transportation. The valve assembly must be capable of withstanding at least 50,000 (closing and opening) cycles at cylinder service pressure without damage; the valve housing must be capable of withstanding at least 5 times cylinder service pressure without bursting; the valve's diaphragm or internal moving part must be capable of withstanding at least 2.0 times cylinder service pressure without damage. Closure of the valves may be manual or by an actuator capable of remote activation. Closing system must provide for control of closing force so as to prevent damage of the sealing part.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; the special packaging requirements of 49 CFR 173.3a for certain poisonous materials; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

c. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

e. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

f. A copy of this exemption must be carried aboard each vehicle used to transport packages covered by this exemption.

g. Each package must be prepared and shipped in accordance with 49 CFR Part 173 Subpart H, as applicable for the lading.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. August 31, 1993.

Issued at Washington, D.C.



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 22 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA.